

This Non-Disclosure Agreement (the "Agreement") is entered into as of this ____ day of _____, 20__ ("Effective Date") by and between:

Disclosing Party: [Disclosing Party Name], with its principal place of business at [Disclosing Party Address] ("Disclosing Party").

Receiving Party: [Receiving Party Name], with its principal place of business at [Receiving Party Address] ("Receiving Party").

1. Purpose. The Receiving Party wishes to receive certain confidential information (as defined below) for the purpose of [Describe the purpose, e.g., evaluating a potential business relationship, developing a software project, etc.] (the "Purpose").

2. Definition of Confidential Information. "Confidential Information" shall mean any and all non-public information, whether technical or non-technical, disclosed by the Disclosing Party to the Receiving Party. This includes, but is not limited to, any business plans, customer lists, financial data, product designs, source code, marketing strategies, and any other proprietary information.

3. Obligations of Receiving Party. The Receiving Party agrees: (a) to hold the Confidential Information in strict confidence and to take all reasonable precautions to protect such Confidential Information. (b) not to disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party. (c) not to use any Confidential Information for any purpose except for the Purpose described herein.

4. Exclusions. Confidential Information does not include information which: (a) is or becomes publicly known and available through no fault of the Receiving Party. (b) is already in the possession of the Receiving Party at the time of disclosure. (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

5. Term. The obligations of this Agreement shall remain in effect for a period of [Number] years from the Effective Date, unless terminated earlier by either party with 30 days written notice. The receiving party's duty to protect the confidentiality of the information shall survive the termination of this agreement.

6. Return of Information. Upon termination of this Agreement or upon written request by the Disclosing Party, the Receiving Party shall promptly return or destroy all materials containing Confidential Information.

7. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State/Country of [State/Country].

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

DISCLOSING PARTY: Signature: _____ Name: [Name]
Title: [Title]

RECEIVING PARTY: Signature: _____ Name: [Name]
Title: [Title]